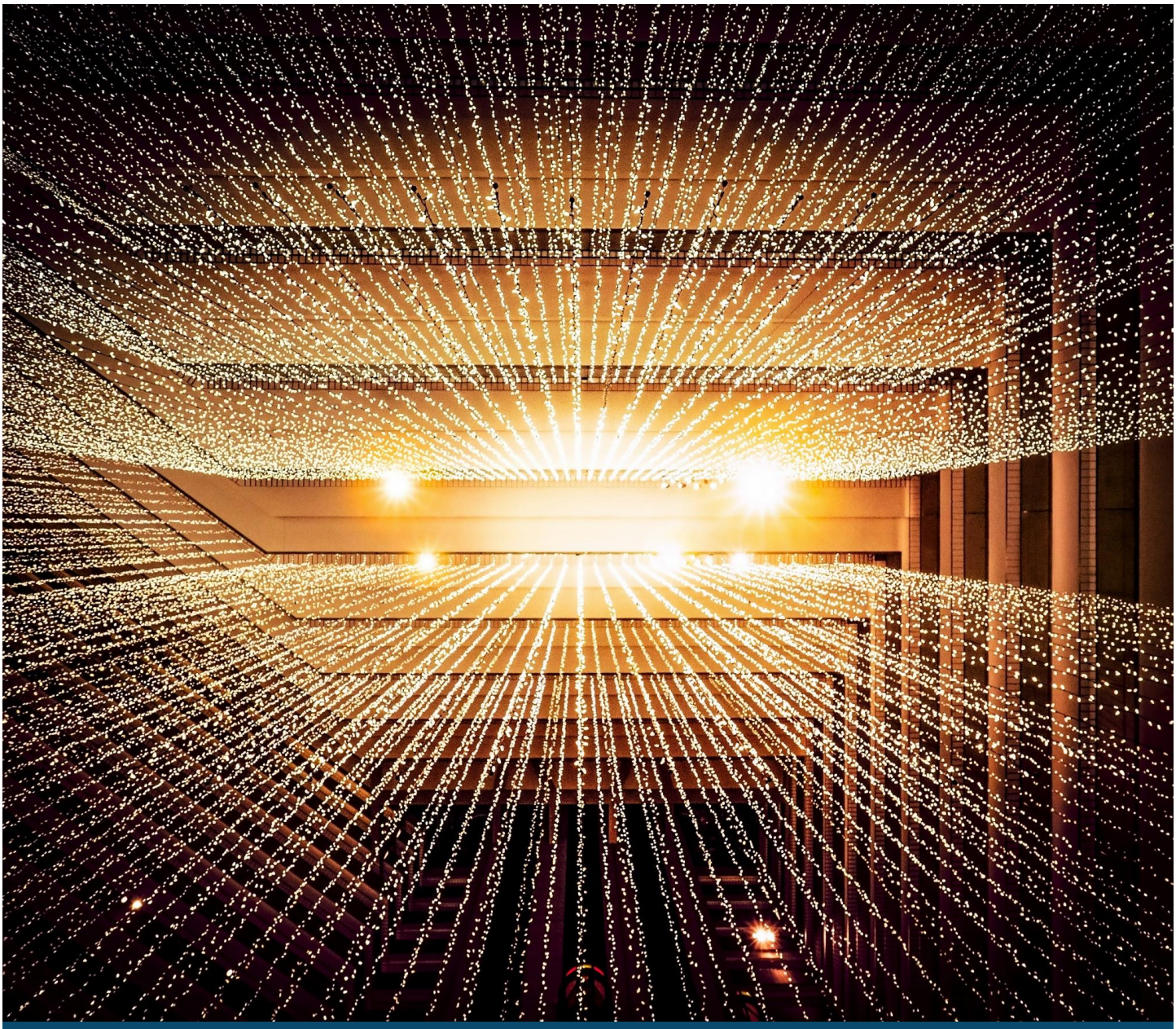


Framework for Accountability in Generative Artificial Intelligence

Initial Guidance on the Equitable and Responsible Use of Generative Artificial Intelligence for Washington State Agencies

Washington State OFFICE OF EQUITY

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Executive Summary

The Washington State Office of Equity is excited to partner with you and advance a future where everyone can participate in the decisions and policies that impact them. We advance systems change so everyone has full access to the opportunities, power, and resources they need to flourish and achieve their full potential (RCW 43.06D.020). Our team analyzes the outcomes and human impact of our decision-making to drive accountability within the Washington State government.

On January 30th, 2024, Governor Inslee issued Executive Order 24-01 – ARTIFICIAL INTELLIGENCE (EO 24-01).

"To ensure algorithmic justice as it relates to digital equity, by September 2024, the Office of Equity will oversee the development, implementation, and ongoing support of an overarching framework for accountability in the fair, ethical, and equitable use of generative AI by the state.

a) The accountability framework will be created in partnership with WaTech, DES, and the Workforce Training and Education Coordinating Board to de-silo and remove barriers for agencies seeking to test and implement generative AI tools.
b) The accountability framework must be comprised of a transparent, systematic, and continuous monitoring of outcomes and impacts on communities and must include the intentional and consistent engagement of communities.
c) The accountability framework should be informed by subject-matter experts from across the Enterprise, community members, Tribal governments, impacted front-line state employees, and academic and industry stakeholders whose purpose will be to co-create an assessment process and performance measures."

What is Generative AI?

Section 1 of EO 24-01 defines Generative AI (GenAI) as: "A technology that can create content, including text, images, audio, or video when prompted by a user. GenAI systems learn patterns and relationships from large amounts of data, which enables systems to generate new content that may be similar, but not identical, to the underlying training data."

As stated in the State of Washington Generative Artificial Intelligence Report: "Because of its unique ability to generate content on its own without relying on being fed pre-existing data, GenAI is commonly used in the application of creating content such as image generation, storytelling, and document writing."

Below are some examples of how GenAI might be used:

- **Image Generation:** Tools can create detailed, photorealistic images based on text prompts, enabling artists, designers, and marketers to visualize concepts quickly.
- **Content Creation:** Platforms are used by content creators and marketers to draft articles, social media posts, and even entire books, offering creative support and speeding up content production.
- **Code Generation:** Tools assist developers by generating code snippets based on comments or partial code, reducing development time and improving coding efficiency.
- **Music Composition:** AI-driven platforms generate custom music tracks for videos, games, and podcasts, tailored to the user's specific needs and preferences.
- **Video Production:** Generative AI is being used to produce and edit videos, creating realistic scenes or deepfakes with minimal human input.

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Accountability Framework Outcomes

Accountability is a set of mechanisms that are designed to ensure that agencies meet their responsibilities to the communities they serve in a way that is equitable and efficient. This is done by establishing clear expectations, measuring performance, and collaborating through feedback and continuous improvement. The point of accountability is not to penalize and shame mistakes, but to improve the system for everyone.

> "Power shadows are cast when the biases or systemic exclusion of a society are reflected in the data."
>
> Joy Buolamwini
> Algorithmic Justice League

This framework provides initial guidance on best practices agencies can use in their approach to artificial intelligence technology and will inform the design and implementation of the process for accountability in the "fair, ethical, and equitable use of generative AI by the state". As ongoing work for this Accountability Framework to ensure algorithmic justice as it relates to digital equity, the Office of Equity will oversee the development, implementation, and ongoing support of an overarching framework for accountability in the fair, ethical, and equitable use of generative AI by the state in collaboration with subject-matter experts from across the Enterprise, community members, Tribal governments, impacted front-line state employees, and academic and industry stakeholders to co-create an assessment process and performance measures.

The framework consists of five pillars of accountability:

1. **Governance:** Create effective operational structures around the use of GenAI.
2. **Equity:** Center the consideration and protection of vulnerable and underserved communities.
3. **Data:** Outline the responsibility for data sourcing and privacy protections.
4. **Performance and Outputs:** Understand the risks and assess the performance and impacts of outputs of GenAI applications.
5. **Continuous Monitoring:** Structure monitoring plans to ensure continuous equitable and responsible use of GenAI.

Key Takeaways

- A well-implemented generative AI system has great potential to transform lives, and this framework seeks to create a guide to that outcome.
- The Generative AI accountability framework will drive the ethical use of generative AI toward a positive impact.
- Ultimately, we must ensure that we do not reinforce long-standing inequities nor introduce new ones.

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Pillars of Accountability

The following Framework for Accountability in GenAI is based on the framework *Artificial Intelligence: An Accountability Framework for Federal Agencies and Other Entities* created by the U.S. Government Accountability Office (GAO). This framework has been adapted to reflect the unique community needs and the equity and anti-racism concerns of Washingtonians.

Accountability is a set of mechanisms that are designed to ensure that agencies meet their responsibilities to the communities they serve in a way that is equitable and efficient. This is done by establishing clear expectations, measuring performance, and collaborating through feedback and continuous improvement. The point of accountability is not to penalize and shame mistakes, but to improve the system for everyone.

> "I think integrity is the greatest risk. We are definitely going to need to watch how we use this [AI] and we need to make sure that we remain the masters of the masterpiece."
>
> Latrice Williams
> Office of Equity Community Advisory Board Member

The framework consists of five pillars of accountability:

6. **Governance:** Create effective operational structures around the use of GenAI.
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This enterprise-level framework should inform the agency-level policies. Remember, the communities we serve should have a voice to inform the entire process. The Washington State Health Care Authority is an example of an agency creating its own framework: Health Care Authority Artificial Intelligence Ethics Framework.

Governance

Governance should be built on existing structures within the state enterprise or agency. We recommend that you implement these guidelines through your existing governance structures as much as possible.

Components of Effective Governance:

- **Clear goals:** Define clear goals and objectives to achieve intended outcomes. Ensure that the use of GenAI provides benefits our communities, and mitigates disparities, risks, and harm.
- **Roles, responsibilities, and monitoring:** Define clear roles, responsibilities, and delegation of authority to ensure effective operations, timely corrections, and sustainable, transparent accountability. Accountability cannot be sustained without monitoring performance and impact. Make use of the existing systems and structures but identify any gaps that need to be addressed.

- **Values:** Demonstrate a commitment to the guiding principles (page 5) to foster public trust in the responsible use of GenAI. Intentionally build for access and positive impact on underserved and vulnerable communities.
- **Community involvement:** Include diverse perspectives from a variety of community voices throughout the usage of GenAI, when applicable. Consider the needs of our communities and whether the use of GenAI serves them.
- **Transparency:** Promote transparency by enabling open access to information on the design, operation, and limitations of the GenAI system as much as possible. Establish a way for community members to give feedback and submit complaints on specific uses of GenAI enabled applications that directly impact them.

Equity

The state of Washington is committed to accuracy, reliability, and ethical outcomes when adopting GenAI. Washington State and its agencies should engage and support historically vulnerable communities and serve all those who reside, work, or do business in Washington in a transparent, engaged, and equitable way.

Equity Guidelines

- **Emphasize human involvement and human impacts:** Involve human reviewers in high-risk use cases. Identify biases, analyze impacts, and check for unintended consequences at all stages. The agency is responsible for reporting on results, communications, and decision-making.
- **Accessibility and plain language:** This is a requirement of Executive Order 23-03 for all public information. It emphasizes the importance of upstream communication in creating downstream impact. Content creators are required to address accommodation needs and language barriers, ensuring transparency and effective communication to make GenAI systems more understandable and interpretable by the impacted communities.
- **Pro-Equity and Anti-Racism:** Any negative impact on vulnerable groups should be anticipated to the extent possible by the agency. If negative impacts occur, these impacts should be immediately addressed, and a plan should be in place to eliminate the cause of these negative impacts. Specifically, Washington State is mandated to address the exclusion, marginalization, and oppression of Black, Indigenous, People of Color, and other groups. The deeply entrenched inequities can be exacerbated by the usage of GenAI.
- **Generative AI images or video:** Assess the impact of GenAI-created images, code, and verbiage on contracting, and address ingrained bias in the system causing skewed outputs. Images and videos can be sources of bias and misinformation, and therefore agencies need to be intentional in their use.
- **Generative AI usage transparency:** Agencies should indicate when GenAI applications are being used in direct interactions with the public or when GenAI is used to produce, in part or in full, content, reports, images, or videos for public consumption. A simple disclaimer should be clearly posted on any generated content.
- **Data source accountability:** Agencies should as much as possible seek out data sources that are ethically created and curated as they will be responsible for understanding and mitigating bias in their processes.
- **Bias detection and mitigation:** Create a process to detect and address bias. Evaluate the reliability, quality, and representativeness of all data used in the system, and identify any potential biases, inequities, or other societal concerns related to the data used by the generative AI system.

- **Trust and reputation of government:** It is important at all levels to foster public trust, especially with misinformation on AI, the lack of holistic controls, and the rapidly changing landscape. The amount of necessary mitigation can be scaled to the assessed risk level and use case.

Data

Primary guidelines for sourcing and privacy of data in GenAI systems should be adopted and deployed in compliance with existing data protection policies and statutes. For equitable outcomes, data transparency and responsible data sourcing are essential.

Data Sourcing and Transparency

- **Identify data sources:** Identify, to the extent possible, the underlying data and base models in an application.
- **Identify data pathways:** Agencies should understand what happens when a user submits data into a GenAI enabled system and understand how it might be used by the GenAI application.
- **Hallucination tracking:** A known phenomenon in AI where trained models will make connections to unrelated data, causing an output that is non-sensical. The frequency and root causes of these hallucinations in that data should be considered during the ongoing use of a GenAI application.
- **Reliability:** Agencies must be responsible for conclusions or deliverables that were generated and are accountable to the communities impacted by the use of AI. They should adopt or address in policy how reliability will be determined in GenAI outputs.

Data Guidelines for Enterprise Use and Implementation

- **GenAI services inventory:** The state enterprise should create and maintain a list of the GenAI applications. To support efficiency across agencies as well as build trust with community through transparency, information about these applications should be published without introducing security risks to the state.
- **Opt-out options:** GenAI Applications that are considered high-risk based on data concerns identified by the risk assessment: agencies should identify how the user can opt out of the AI components without impacting their access to public services. This includes instances where an individual is interacting with an AI or where an individual's data might be used in an AI application.

Performance and Outputs

Please follow these guidelines to generate content, with the understanding that the GenAI system will only provide outputs based on the data it is trained on. Agencies using GenAI should develop a plan to measure performance based on their specific needs, especially for high-risk use cases, and consider whether the outputs are meeting the State's requirements. It is crucial to evaluate the effects on vulnerable and underserved populations when assessing output performance of high-risk use cases and other use cases where applicable.

Performance Metrics

- **Measuring bias**: Agencies should ensure that the system's base model is checked against evidence of bias. If evidence of bias is found, agencies are expected to plan for either ending the use of the biased GenAI application or creating and executing a plan for mitigating these biases.
- **Alignment with agency goals:** Agencies should ensure their use of GenAI is measured in alignment with their intended business outcomes (for example, customer satisfaction, service quality, efficient service delivery, cost, etc.).
- **High risk**: Please refer to the executive order section 8, Risk Assessment.

- **Evaluate the quality of inputs**: Agencies should evaluate their GenAI input to ensure a precise prompt to receive a useful output. Evaluating inputs (prompts) is equally as important as evaluating outputs for bias and accuracy.

Performance Guidelines for Use and Implementation

- **Explore all options:** Agencies should consider if the GenAI application being used is the best way to get the needed results. Consider the pros and cons of using a particular system over other available systems or using a workforce or human-based approach.
- **Consistency:** Evaluate GenAI systems to ensure consistent performance across all uses. Individual outputs should be validated.
- **Piloting:** It is recommended to establish at least 6 months of a pilot plan for new applications with a significant number of unknowns, one that might have negative impacts on vulnerable groups.

Continuous Monitoring

Primary guidelines on how to structure a monitoring plan for a successful, transparent, and ongoing implementation of GenAI use cases and their impacts on communities.

- **Planning:** Establish and implement a reasonable plan for regularly monitoring the GenAI system to ensure it operates as intended, based on the level of risk.
- **Traceability**: Document the results of monitoring activities and any corrective actions taken to ensure traceability and transparency.
- **Opt-out:** Specifically, for opt-out options for members of the public engaging with GenAI in their interactions with state government. Measure the results of the established opt-out option against the services provided with GenAI, in terms of timeliness, calculations, and outcomes.
- **Public feedback:** Identify a mechanism for public feedback scaled to risk level and use case, especially from groups at risk of negative impact.
- **Transparency structure:** Adopt or develop a transparency structure that keeps the public informed. If a problem is identified, impacted communities should be given direct notice and a collaborative plan should be created on how to mitigate these impacts. Agencies should post a simple disclaimer on any generated content.

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Guiding Principles

The following guidance was adapted from the *Artificial Intelligence Risk Management Framework* created by the National Institute of Standards and Technology (NIST) within the U.S. Department of Commerce.

Equity: The use of GenAI should support the state's work in delivering better and more equitable services and outcomes to its residents. When directly or indirectly applicable, understand the benefits and burdens of the use of GenAI for communities and mitigate the negative impacts on vulnerable or underserved groups. GenAI technologies that optimize resource distribution can significantly benefit communities when applied thoughtfully, ensuring that they contribute positively to societal goals.

Responsibility: As public stewards, agencies should use GenAI responsibly and be held accountable for the performance, impact, and consequences of its use in agency work. AI-powered monitoring systems can assist in improving operational efficiency, but they must be implemented with clear accountability structures to manage their potential impacts.

Community: AI should not be used simply for the novelty of it. As such, AI applications should be utilized to support and uplift communities, particularly those who are underserved and underrepresented. Fairness in GenAI identifies concerns for equity by addressing issues such as harmful bias and discrimination. Systems must be designed, implemented, and utilized in a way that avoids reinforcing or eliminates entirely existing biases and focus on fairness, inclusion, and non-discrimination.

Transparency: Acting transparently and creating a record of GenAI processes can build trust and foster collective learning. Transparency reflects the extent to which information about a GenAI system and its outputs is available to the individuals interacting with the system. Transparency answers "what happened" in the system. Automated systems that provide recommendations or decisions should be transparent about how those outcomes are determined, allowing users to understand and trust the process.

Safety, Security, and Resiliency: GenAI should be used with safety and security in mind, minimizing potential harm and ensuring that systems are reliable, resilient, and controllable by humans. AI systems used by state agencies should not endanger human life, health, property, or the environment. For instance, facial recognition technology can improve the efficiency of identity verification processes but also requires careful monitoring to prevent privacy violations.

Reliability: Agencies are responsible for the ensuring the use of GenAI produces accurate and valid outputs and demonstrates reliable system performance. In applications such as automated decision-making, AI can help make processes more precise and improve efficiency. However, it's essential to ensure these systems and the humans that operate them avoid potential errors that could have significant consequences.

Privacy and Data Protection: GenAI should be used to respect user privacy, ensure data protection, and comply with relevant privacy regulations and standards. Privacy values such as anonymity, confidentiality, and control generally should guide choices for GenAI system design, development, and deployment. Privacy-enhancing GenAI should safeguard human autonomy and identity where appropriate.

Explainable and Interpretable: Agencies should ensure GenAI use in the system can be explained, meaning "how" the decisions made by the system can be understood. Interpretability of a system means an agency can answer the "why" for a decision made by the system, and its meaning or context to the user. GenAI tools that assess risk should be able to explain how they arrive at conclusions, helping the community to understand and trust the output.

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Selected Resources

- U.S. Government Accountability Office. (n.d.). Framework (GIO): This report identifies key accountability practices—centered around the principles of governance, data, performance, and monitoring—to help federal agencies and others use AI responsibly. U.S. Government Accountability Office.
- State of California. (n.d.). Benefits and risks of generative artificial intelligence report. State of California.
- Info-Tech Research Group. (n.d.). AI for good: A framework to support vulnerable people in society. Info-Tech Research Group. Retrieved from https://infotech.com
- European Union. (n.d.). General Data Protection Regulation (GDPR): The GDPR is a comprehensive data protection regulation that sets strict standards for collecting, processing, and sharing personal data. European Union.
- Government of Canada. (n.d.). Directive on automated decision-making: In Canada, the government has issued a directive that outlines guidelines for the ethical use of AI systems in decision-making processes. Government of Canada.
- Government of Finland. (n.d.). Ethics guidelines for trustworthy AI: The Finnish government has published guidelines that promote the development and use of trustworthy AI systems. Government of Finland. 2024
- Government of Washington State, Health Care Authority (n.d.). HCA Artificial Intelligence Ethics Framework. The HCA AI Ethics Committee is sponsored by the HCA Data Governance and Oversight Committee and is tasked with developing and maintaining an AI ethics framework and applying that framework to the use of GenAI. 2024.
- "Americans' Views of Government: Decades of Distrust, Enduring Support for Its Role." Pew Research Center, Washington, D.C. (June 6th, 2022) Americans' Views of Government Pew Research Center
- Results Washington: Performance Measure Guide for State Agencies (2024) Performance Measure Guide for Washington State Agencies | Results Washington
- "When AI Gets It Wrong, Will It Be Held Accountable?" RAND Research (May 9th,2024) When AI Gets It Wrong, Will It Be Held Accountable? | RAND
- Results Washington: Performance Measure Guide for State Agencies (2024) Unmasking the bias in facial recognition algorithms | MIT Sloan
- "Unmasking the Bias in Facial Recognition Algorithms" Joy Buolamwini, MIT, Sloan School of Management (December 13. 2023) Algorithmic Justice League - Unmasking AI harms and biases (ajl.org)
- "We're in a diversity crisis" Jackie Snow, MIT Technology Review (02/14/2018) "We're in a diversity crisis": cofounder of Black in AI on what's poisoning algorithms in our lives | MIT Technology Review
- "Towards accountability in the use of Artificial Intelligence for Public Administrations" (2021) Michele Loi and Matthias Spielkamp Accountability-in-the-use-of-AI-for-Public-Administrations-AlgorithmWatch-2021.pdf